

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
July 2, 2026  
8:30 a.m./1:30 p.m.

**3. HOPE KINSMAN V. JEREMY KINSMAN**

**25FL0256**

On April 9, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees and costs. It does not appear that this RFO was served, however on June 9, 2026 he filed an amended RFO seeking spousal support, attorney's fees and "fiduciary sanctions." He attached a previously filed Income and Expense Declaration dated March 2<sup>nd</sup>, but he did not file an updated Income and Expense Declaration. The amended RFO was served on June 9<sup>th</sup> along with an FL-150, though it is unclear if the FL-150 that was served was a blank one or an updated one. Additionally, the Notice of Tentative Ruling was not served.

Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on June 17<sup>th</sup>.

Respondent filed a reply declaration and his Income and Expense Declaration on June 23<sup>rd</sup>.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

In addition to the court's need for an Income and Expense Declaration to make support orders, it is also needed for the court to rule on a request for attorney's fees as the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

This matter is dropped from calendar due to Respondent's failure to timely file the requisite Income and Expense Declaration and due to his failure to serve the required Notice of Tentative ruling.

**TENTATIVE RULING #3: THIS MATTER IS DROPPED FROM CALENDAR DUE TO RESPONDENT'S FAILURE TO TIMELY FILE THE REQUISITE INCOME AND EXPENSE DECLARATION AND DUE TO HIS FAILURE TO SERVE THE REQUIRED NOTICE OF TENTATIVE RULING.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR**

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**BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**4. SARA KLINKENBORG V. CHRISTOPHER NELSON**

**24FL1262**

On March 27, 2026, Petitioner filed a Request for Order (RFO) seeking to compel discovery responses, sanctions, and additional orders as set forth on her FL-316. All required documents were served on May 6<sup>th</sup>.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He was aware of the requests being made and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner requests an order compelling Respondent’s preliminary and final declarations of disclosure, Form Interrogatory responses, Special Interrogatory responses, and responses to Requests for Production of Documents. She further requests attorney fees and sanctions in the amount of \$5,000 plus an additional \$1,000 in sanctions pursuant to Family Code § 271.

Disclosures

Family Code sections 2104 and 2105 impose on each party the obligation of making preliminary and final disclosures of assets within the specified timeframes. Where a party fails to comply with their disclosure requirements, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1).

Here, Petitioner has complied with the law and served her preliminary and final declarations of disclosure; as such she has standing to assert her demand for the same pursuant to Family Code Section 2107. Accordingly, Respondent is ordered to serve full and complete preliminary and final declarations of disclosure, with supporting documents, no later than July 16, 2026.

Discovery Responses

Petitioner served Requests for Production of Documents and Special Interrogatories on June 2, 2025 and Form Interrogatories on June 6, 2025. Responses were due July 7, 2025 and July 11, 2025, respectively.